

Undertaking to the Australian Competition and Consumer Commission

Given under section 87B of the *Competition and Consumer Act 2010* (Cth) by **Louis Dreyfus Company B.V., Louis Dreyfus Company Melbourne Holdings Pty Ltd ACN 161 877 185** and **LDC Enterprises Australia Pty Limited ACN 003 415 950**

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1. Person giving the Undertaking

- 1.1. This Undertaking is given to the Australian Competition and Consumer Commission (**ACCC**) by each of Louis Dreyfus Company B.V. (**LDCBV**) and its subsidiaries Louis Dreyfus Company Melbourne Holdings Pty Ltd ACN 161 877 185 (**LDC Melbourne**) and LDC Enterprises Australia Pty Limited ACN 003 415 950 (**LDC Enterprises**) on their own behalf and on behalf of their respective subsidiaries (together referred to as **LDC Group** in this Undertaking).

2. Background

The parties to the proposed acquisition

- 2.1. LDC Melbourne and LDC Enterprises are wholly owned subsidiaries of LDCBV, which is 55% indirectly owned by the family foundation established by Robert Louis-Dreyfus and a minority shareholder member of the Louis Dreyfus family and 45% owned by the Abu Dhabi Development Holding Company P.J.S.C. In Australia, the relevant LDC Group entities focus on cotton – the origination, ginning, storage, shipment, classing and trading / marketing of cotton lint and cottonseed globally – and grains and oilseeds.
- 2.2. Namoi Cotton Limited (**Namoi**), is an ASX listed cotton agribusiness company. Namoi has two major shareholders – Louis Dreyfus Company Asia Pte. Ltd. (a wholly owned subsidiary of LDCBV), with approximately a 17% interest, and Samuel Terry Asset Management Pty Ltd, which holds approximately a 25% interest. The Namoi business comprises of cotton ginning, cottonseed marketing, cotton lint origination, cotton lint classing and participation in Namoi Cotton Alliance (**NCA**) and Namoi Cotton Marketing Alliance (**NCMA**).

The Proposed Acquisition

- 2.3. LDC Melbourne proposes to acquire all of the fully paid ordinary shares in Namoi, which LDC Group does not already own or control (the **Proposed Acquisition**).

The ACCC's review

- 2.4. On 19 February 2024, the ACCC commenced its public review of the Proposed Acquisition.
- 2.5. The ACCC undertook market inquiries and considered information provided by the parties to the Proposed Acquisition, industry participants and others. The purpose of the ACCC's inquiries was to assess whether the Proposed Acquisition would have the effect, or be likely to have the effect, of substantially lessening competition in any market in Australia in contravention of section 50 of the Act.

The ACCC's competition concerns

- 2.6. The ACCC was concerned that, in the absence of the Undertaking, the Proposed Acquisition would have the effect, or be likely to have the effect, of substantially lessening competition in the market for the supply of cotton lint classing services in Australia (**Classing Market**) and the market for the supply of ginning services in the north of Western Australia and the Northern Territory (**Western Australia and Northern Territory Ginning Market**).
- 2.7. The ACCC found that the Classing Market is highly concentrated. ProClass Pty Ltd (**ProClass**) and Australian Classing Services Pty Ltd (**ACS**) are the top two

suppliers, with only one alternative competitor. The ACCC also considered ProClass and ACS to be each other's closest competitors.

- 2.8. LDC Enterprises has a shareholding in ProClass (**ProClass Shareholding**). Namoi supplies cotton lint classing services through its ownership of ACS. Therefore, the ACCC considered the Proposed Acquisition would, through these interests, combine the top two suppliers in the Classing Market. Further, the ACCC considered there were weak prospects of significant new entry in the Classing Market.
- 2.9. Additionally, the ACCC found that the WANT Cotton gin and Kimberley Cotton Company (KCC) gin would, once both are operational, compete to supply ginning services to growers in Western Australia and would be each other's closest competitors.
- 2.10. LDC Melbourne is a party to a Joint Venture Agreement, which entitles it to a profit share arrangement, in respect of the operation of the WANT Cotton gin. Namoi holds a minority interest in the KCC gin and will also be its operator. The ACCC therefore considered the Proposed Acquisition would result in LDC Melbourne having an interest in the two suppliers of ginning services in the north of Western Australia and the Northern Territory. The threat of new entry or expansion was considered unlikely to provide an effective constraint on the merged entity.

The Undertaking remedy

- 2.11. The objective of this Undertaking is to address the ACCC's competition concerns as set out above that would otherwise arise as a consequence of the Proposed Acquisition. The Undertaking aims to achieve this objective by placing obligations on LDC Group:
 - (a) to divest the ProClass Shareholding;
 - (b) to ensure that the ProClass Shareholding is divested in a manner that will maintain ProClass as a viable, effective, stand-alone, independent and long-term competitor for the Classing Market;
 - (c) to maintain the economic viability, marketability, competitiveness and goodwill of ProClass prior to divestiture of the ProClass Shareholding;
 - (d) to terminate the WANT Joint Venture Agreement (**WANT JVA**);
 - (e) to ensure that the WANT gin will operate as a viable, effective, stand-alone, independent, and long-term competitor located in the Northern Territory and Western Australian Ginning Market following the termination of the WANT JVA;
 - (f) to maintain the operational support required for the successful establishment and ongoing operation of the WANT gin prior to termination of the WANT JVA;
 - (g) to ensure that its know-how and expertise on technical operations is transferred to the new operator of the WANT gin to enable it to reliably operate the WANT gin; and
 - (h) to provide for the effective oversight of LDC Group's compliance with this Undertaking.

3. Commencement of this Undertaking

- 3.1. This Undertaking comes into effect when:
- (a) this Undertaking is executed by LDC Group; and
 - (b) this Undertaking so executed is accepted by the ACCC
- (the **Commencement Date**).

4. Cessation of Ongoing Obligations

Revocation

- 4.1. The ACCC may, at any time, revoke its acceptance of this Undertaking if the ACCC becomes aware that any information provided to it was incorrect, inaccurate or misleading. Such a revocation must be express and in writing.

Waiver

- 4.2. The ACCC may, at any time, waive any of the obligations contained in this Undertaking. Such a waiver must be express and in writing.

Extension

- 4.3. The ACCC may, at any time, extend the date by which any of the obligations in this Undertaking is to be satisfied. Such an extension must be express and in writing.

Survival

- 4.4. Unless and until this Undertaking is withdrawn in accordance with s87B(2) of the Act, clauses 1, 2, 3, 4, 8, 9, 10, 11, 12, 13, 14, 15, 16 and 17 survive completion of the obligations in clauses 5, 6, 7 and Confidential Schedules 3 and 4.

5. Divestiture of the ProClass Shareholding

Divestiture

- 5.1. LDC Enterprises must divest its shareholding in ProClass.
- 5.2. Within 1 Business Day of the Effective Date, LDC Enterprises must commence the divestiture of the ProClass Shareholding in accordance with Confidential Schedule 3.
- 5.3. LDC Enterprises must take all steps capable of effecting and achieving the divestiture of the ProClass Shareholding.
- 5.4. LDC Enterprises must exercise its rights as a shareholder of ProClass to ensure the effective implementation of the divestment of its ProClass Shareholding, including but not limited to:
- (a) not unreasonably withholding any consents required, whether or not those consents are required under the ProClass Shareholders' Deed;
 - (b) taking all steps required to enforce its rights under the ProClass Shareholders' Deed; and

- (c) taking the steps set out in Confidential Schedule 3.
- 5.5. LDC Enterprises must not:
- (a) frustrate the divestment of its ProClass Shareholding;
 - (b) influence or frustrate the appointment of any ProClass director;
 - (c) influence or frustrate the direction or management of ProClass or the ProClass Business;
 - (d) under clause 8.3 of the ProClass Shareholders' Deed:
 - (i) visit or inspect any property of ProClass; or
 - (ii) inspect or take copies of documents about the ProClass Business and ProClass' affairs including its financial records; or
 - (e) in any other way negatively impact ProClass' ability to be a viable, effective, stand-alone, independent and long-term competitor in the Classing Market.
- 5.6. For the avoidance of doubt, nothing in this Undertaking prevents LDC Enterprises from communicating with ProClass for the sole purpose of ensuring the implementation of the divestment of its ProClass Shareholding.

Directorship

- 5.7. Within 1 Business Day of the Effective Date, LDC Enterprises must cause its nominated director to resign from the board of ProClass by giving written notice to ProClass.
- 5.8. LDC Enterprises must not appoint a replacement director to the board of ProClass.
- 5.9. Within 1 Business Day of the Effective Date, LDC Enterprises must direct ProClass to not:
- (a) provide LDC Group with any reports or documents that are made available to the board of ProClass;
 - (b) communicate to LDC Group information that is made available to the board of ProClass; or
 - (c) provide LDC Group with any other ProClass Confidential Information.
- 5.10. From the Effective Date, if any LDC Group personnel receives any of the materials identified in clause 5.9(a), (b) and (c) (**ProClass Materials**), LDC Group must, and must direct each LDC Group personnel recipient to:
- (a) not read, review, communicate or use any of the ProClass Materials;
 - (b) return, destroy or delete all the ProClass Materials (as appropriate) immediately upon becoming aware that the material is ProClass Confidential Information or information that is made available to the board of ProClass; and
 - (c) notify the Approved Independent Auditor of the disclosure and the steps LDC has taken.

- 5.11. From the Effective Date, LDC Group must not access or seek out any of the ProClass Materials.

6. Termination of the WANT Joint Venture

- 6.1. LDC Melbourne must terminate the WANT JVA on the date set out in Confidential Schedule 4.
- 6.2. Within 1 Business Day of the Effective Date, LDC Melbourne must commence its withdrawal from the WANT joint venture by taking the steps set out in Confidential Schedule 4.
- 6.3. LDC Melbourne must take all steps capable of effecting and achieving its withdrawal from the WANT JVA.

7. Business Protection

Confidential Information

- 7.1. Subject to clause 7.2, LDC Group must not, at any time from the Commencement Date, use or disclose any confidential information about ProClass or the WANT gin gained through:
- (a) ownership and/or management of the ProClass Shareholding;
 - (b) operation of the WANT gin; or
 - (c) fulfilling any obligations pursuant to this Undertaking.
- 7.2. Clause 7.1 does not apply to information that LDC Group requires to:
- (a) comply with legal and regulatory obligations including obligations relating to taxation, accounting, financial reporting or stock exchange disclosure requirements; or
 - (b) carry out its obligations pursuant to this Undertaking;
- provided such information is only used for that purpose and is only disclosed to those officers, employees, contractors and advisers of LDC Group who need to know the information to carry out the permitted purpose.

Transferred Personnel

- 7.3. The obligations under clause 7.4 are effective at the WANT JVA Termination Date.
- 7.4. At the option of WANT, LDC Group must transfer to WANT, or at the election of WANT to a Successor:
- (a) all employees of Louis Dreyfus Company Ginning Services Pty Ltd; and
 - (b) all service providers under a contract for service who are dedicated to the provision of services at the WANT gin;
- who are, in the view of WANT, required for it to maintain, operate or conduct effectively the WANT gin and who consent to the transfer of their employment or contract for service to WANT (**Transferred Personnel**).

- 7.5. When fulfilling its obligations under clause 7.4, LDC Group must:
- (a) encourage all Transferred Personnel to transfer their employment to WANT, including offering incentives based on industry practice;
 - (b) not directly or indirectly discourage any Transferred Personnel from any obligations to provide services to the WANT gin;
 - (c) effective on the WANT JVA Termination Date, release the Transferred Personnel from any obligations to provide services to LDC Group;
 - (d) effective on the WANT JVA Termination Date, release the Transferred Personnel from any non-compete or similar restraint of trade obligation, to the extent that such an obligation would otherwise prevent the person from performing his or her contemplated role in relation to the WANT gin; and
 - (e) not procure, promote or encourage the transfer of any of the Transferred Personnel from WANT to LDC Group for a period of 12 months after the WANT JVA Termination Date.

Personnel of LDC Group

- 7.6. From the Commencement Date until the WANT JVA Termination Date, LDC Group must:
- (a) in consultation with WANT, replace any
 - (i) Transferred Personnel; or
 - (ii) if the Transferred Personnel have not yet been identified, any personnel necessary for the operation of WANT gin;who leave or will leave LDC Group before termination of the WANT JVA;
 - (b) not terminate or vary the terms of employment or engagement (or agree to do any of those things) of any of the
 - (i) Transferred Personnel; or
 - (ii) if the Transferred Personnel have not yet been identified, any personnel necessary for the operation of the WANT gin; and
 - (c) not directly or indirectly procure, promote or encourage the redeployment of personnel necessary for the operation of the WANT gin as at the Commencement Date to any other business operated by LDC Group.
- 7.7. As soon as practicable after the Commencement Date, LDC Group must direct its personnel, including directors, contractors, managers, officers, employees and agents not to do anything inconsistent with LDC Group's obligations under this Undertaking.
- 7.8. From the Commencement Date, LDC Melbourne must not alter or vary the terms of the WANT JVA at Confidential Schedule 6 or the LDC Protocol at Confidential Schedule 7 to this Undertaking without prior written approval from the ACCC.

Transitional support

- 7.9. During the Termination Notice Period under, and in accordance with the terms of the WANT JVA, LDC Melbourne must:
- (a) operate the gin to ensure the successful establishment and ongoing operation of the WANT gin prior to the WANT JVA Termination Date; and
 - (b) ensure the WANT gin is managed and operated in the ordinary course of business as a fully operational, competitive going concern and in such a way that preserves the economic viability, marketability, and competitiveness of the WANT gin.
- 7.10. LDC Melbourne must offer to provide the Services to WANT or any Successor until the end of the Transitional Services Period (**Transitional Services**).
- 7.11. LDC Melbourne must supply the Services and any Transitional Services required by WANT or any Successor to operate the WANT gin as a viable, effective, stand-alone, independent and long-term competitor in the Western Australia and Northern Territory Ginning Market.
- 7.12. LDC Melbourne must ensure that any extension or renewal to the Transitional Services Period set out in Confidential Schedule 4:
- (a) is for a reasonable period and approved in writing by the ACCC;
 - (b) provides for the supply of the Services and Transitional Services; and
 - (c) is on such terms other than price which are no less favourable to WANT (as applicable) than arm's length terms.
- 7.13. LDC Melbourne must ensure that any changes to the Services:
- (a) is approved in writing by the ACCC;
 - (b) is agreed with WANT or any Successor; and
 - (c) includes services required by WANT to ensure the transition of WANT as a viable, effective, stand-alone, independent and long-term competitor in the Western Australia and Northern Territory Ginning Market.
- 7.14. To avoid doubt, LDC Melbourne must seek prior written approval from the ACCC of any renewal or extension of the Transitional Services Period or changes to the Transitional Services. Without limiting the ACCC's discretion in making a decision on whether to approve a renewal or extension of the Transitional Services Period or changes to the Transitional Services, the ACCC will have regard to the criteria set out in clauses 7.11, 7.12 and 7.13.
- 7.15. LDC Group must provide all reasonable assistance required by WANT to support WANT in finding a suitable Successor to take over the WANT gin to ensure the WANT gin will operate as a viable, effective, stand-alone, independent and long-term competitor.

8. Independent Audit

Obligation to appoint an Approved Independent Auditor

- 8.1. LDC Group must appoint and maintain an Approved Independent Auditor to audit and report upon LDC Group's compliance with this Undertaking.

Process for approving a Proposed Independent Auditor

- 8.2. On the Commencement Date, LDC Group must provide the ACCC with a notice for a Proposed Independent Auditor in the form prescribed in Schedule 2 to this Undertaking (**Proposed Independent Auditor Notice**), including draft terms of appointment and a draft audit plan.
- 8.3. The Approved Independent Auditor is to be appointed for a term of two years. Within 15 Business Days of the end of the Approved Independent Auditor's term, LDC Group must provide the ACCC with a new Proposed Independent Auditor Notice. A person who is, or who has been, the Independent Auditor is eligible for reappointment as the Independent Auditor.
- 8.4. If clauses 8.18, 8.19 or 8.20 apply, LDC Group must provide the ACCC with a Proposed Independent Auditor Notice within five Business Days after the relevant event occurs.
- 8.5. The ACCC shall have the discretion to approve or reject in writing the Proposed Independent Auditor identified in the Proposed Independent Auditor Notice.
- 8.6. Without limiting the ACCC's discretion, in deciding whether to approve a Proposed Independent Auditor, the factors to which the ACCC may have regard include whether the:
- (a) person named in the Proposed Independent Auditor Notice or identified by the ACCC has the qualifications and experience necessary to carry out the functions of the Approved Independent Auditor;
 - (b) person named in the Proposed Independent Auditor Notice or identified by the ACCC is sufficiently independent of LDC Group;
 - (c) draft terms of appointment and the draft audit plan are consistent with this Undertaking; and
 - (d) draft terms of appointment and the draft audit plan are otherwise acceptable to the ACCC.

Appointment of the Approved Independent Auditor

- 8.7. After receiving a written notice from the ACCC of its approval of a Proposed Independent Auditor, the draft terms of appointment and draft audit plan, LDC Group must by the Effective Date:
- (a) appoint the person approved by the ACCC as the Approved Independent Auditor on the Approved Terms of Appointment; and
 - (b) forward to the ACCC a copy of the executed Approved Terms of Appointment.

Failure to appoint

8.8. If:

- (a) the Approved Independent Auditor has not been appointed by the Effective Date;
- (b) the Approved Independent Auditor has not been appointed within 15 Business Days after the Approved Independent Auditor resigns or otherwise ceases to act as the Approved Independent Auditor pursuant to clause 8.18, 8.19, or 8.20; or
- (c) the ACCC has not received a Proposed Independent Auditor Notice pursuant to clause 8.2 and 8.4;

then clause 8.9 applies.

8.9. If clause 8.8 applies, the ACCC at its absolute discretion may:

- (a) identify and approve a person as the Approved Independent Auditor, including approving the draft terms of appointment and draft audit plan; and/or
- (b) direct LDC Group to appoint a person who the ACCC has deemed is an Approved Independent Auditor.

Obligations and powers of the Approved Independent Auditor

8.10. LDC Group must procure that any proposed terms of appointment for the Approved Independent Auditor include obligations on the Approved Independent Auditor to:

- (a) maintain his or her independence from LDC Group, apart from appointment to the role of Approved Independent Auditor, including not forming any relationship of the types described in paragraph 2.2(c) of Schedule 2 to this Undertaking with LDC Group for the period of his or her appointment;
- (b) conduct compliance auditing according to the Approved Audit Plan;
- (c) provide the following reports directly to the ACCC:
 - (i) a scheduled written Audit Report as described in clause 8.13;
 - (ii) an immediate report of any issues that arise in relation to the performance of his or her functions as Approved Independent Auditor or in relation to compliance with this Undertaking by any person named in this Undertaking; and
- (d) follow any direction given to him or her by the ACCC in relation to the performance of his or her functions as Approved Independent Auditor under this Undertaking.

8.11. LDC Group must procure that any proposed terms of appointment for the Approved Independent Auditor provide the Approved Independent Auditor with the authority to:

- (a) access the facilities, sites or operations of the WANT gin and LDC Group's other businesses as required by the Approved Independent Auditor to the extent this is within LDC Group's control;
 - (b) access any information or documents within LDC Group's power, custody or control that the Approved Independent Auditor considers necessary for carrying out his or her functions as the Approved Independent Auditor or for reporting to or otherwise advising the ACCC; and
 - (c) engage any external expertise, assistance or advice required by the Approved Independent Auditor to perform his or her functions as the Approved Independent Auditor.
- 8.12. LDC Group must use its best endeavours to procure that WANT provides the Approved Independent Auditor with access to the WANT gin facilities, sites and operations.

Compliance Audit

- 8.13. The Approved Independent Auditor must conduct an audit and prepare a detailed report (**Audit Report**) that includes:
- (a) the Approved Independent Auditor's procedures in conducting the audit, or any change to audit procedures and processes since the previous Audit Report;
 - (b) a full audit of LDC Group's compliance with this Undertaking;
 - (c) identification of any areas of uncertainty or ambiguity in the Approved Independent Auditor's interpretation of any obligations contained in this Undertaking;
 - (d) all of the reasons for the conclusions reached in the Audit Report;
 - (e) any qualifications made by the Approved Independent Auditor in forming his or her views;
 - (f) any recommendations by the Approved Independent Auditor to improve:
 - (i) the Approved Audit Plan;
 - (ii) the integrity of the auditing process;
 - (iii) LDC Group's processes or reporting systems in relation to compliance with this Undertaking; and
 - (iv) LDC Group's compliance with this Undertaking; and
 - (g) the implementation and outcome of any prior recommendations by the Approved Independent Auditor.
- 8.14. The Approved Independent Auditor is to provide an Audit Report to the ACCC and LDC Group at the following times:
- (a) within 20 Business Days after the Effective Date, at which time the Audit Report is to include the results of the initial audit and any recommended changes to the Approved Audit Plan, including the Approved Independent

Auditor's proposed procedures and processes for conducting the audit
(Establishment Audit);

- (b) every month from the date of the Establishment Audit until one month after the latter of the WANT JVA Termination Date or the divestiture of the ProClass Shareholding is completed; and
 - (c) every three months after the date of provision of the last Audit Report pursuant to clause 8.14(b), until the ACCC confirms in writing to LDC Group that it is satisfied that LDC Group has fulfilled its obligations pursuant to this Undertaking.
- 8.15. LDC Group must implement any recommendations made by the Approved Independent Auditor in Audit Reports and notify the ACCC of the implementation of the recommendations, within 10 Business Days after receiving the Audit Report or such other period as agreed in writing with the ACCC.
- 8.16. LDC Group must comply with any direction of the ACCC in relation to matters arising from the Audit Report within 10 Business Days after being so directed (or such other period as agreed in writing with the ACCC).

LDC Group's obligations in relation to the Approved Independent Auditor

- 8.17. Without limiting its obligations in this Undertaking, LDC Group must:
- (a) comply with and enforce the Approved Terms of Appointment for the Approved Independent Auditor;
 - (b) maintain and fund the Approved Independent Auditor to carry out his or her functions including:
 - (i) indemnifying the Approved Independent Auditor for any expenses, loss, claim or damage arising directly or indirectly from the performance by the Approved Independent Auditor of his or her functions as the Approved Independent Auditor except where such expenses, loss, claim or damage arises out of the gross negligence, fraud, misconduct or breach of duty by the Approved Independent Auditor;
 - (ii) providing and paying for any external expertise, assistance or advice required by the Approved Independent Auditor to perform his or her functions as the Approved Independent Auditor; and
 - (c) not interfere with, or otherwise hinder, the Approved Independent Auditor's ability to carry out his or her functions as the Approved Independent Auditor, including:
 - (i) directing LDC Group personnel, including directors, contractors, managers, officers, employees and agents, to act in accordance with this clause 8;
 - (ii) providing access to the facilities, sites or operations of the ProClass Shareholding and LDC Group's other businesses as required by the Approved Independent Auditor;
 - (iii) providing to the Approved Independent Auditor any information or documents that they consider necessary for carrying out his or her

functions as the Approved Independent Auditor or for reporting to or otherwise advising the ACCC;

- (iv) not requesting any information relating to the compliance audit from the Approved Independent Auditor without such a request having been approved by the ACCC; and
- (v) not appointing the Approved Independent Auditor, or have any Agreements with the Approved Independent Auditor, to utilise the Approved Independent Auditor's services for anything other than compliance with this Undertaking until at least 12 months after the Approved Independent Auditor ceases to act in the role of the Approved Independent Auditor.

Resignation, revocation or termination of the Approved Independent Auditor

- 8.18. LDC Group must immediately notify the ACCC in the event that the Approved Independent Auditor resigns or otherwise stops acting as the Approved Independent Auditor.
- 8.19. The ACCC may revoke an Approved Independent Auditor's status as the Approved Independent Auditor if the ACCC becomes aware that any information provided to it in connection with the appointment of the Approved Independent Auditor was incorrect, inaccurate or misleading.
- 8.20. The ACCC may approve, pursuant to clause 8.5, any proposal by, or alternatively may direct, LDC Group to terminate the appointment of the Approved Independent Auditor if in the ACCC's view the Approved Independent Auditor acts inconsistently with the provisions of this Undertaking and/or the Approved Terms of Appointment or the Approved Independent Auditor fails to perform their role to an adequate standard.

9. Notification of key dates and ACCC requests for information

- 9.1. LDC Group must notify the ACCC and each Undertaking Appointment in writing of:
 - (a) the anticipated date of the Effective Date, at least five Business Days before that date;
 - (b) the anticipated date of the:
 - (i) completion of the divestiture of the ProClass Shareholding, at least five Business Days before that date;
 - (ii) termination of the WANT JVA, at least five Business Days before that date;
 - (c) the occurrence of the Effective Date, within one Business Day of that date;
 - (d) the occurrence of the completion of the:
 - (i) divestiture of the ProClass Shareholding, within one Business Day of that date;
 - (ii) termination of the WANT JVA, within one Business Day of that date;

- (e) the occurrence of the resignation of LDC Enterprises' nominated director on the board of ProClass, within one Business Day of that date;
 - (f) the occurrence of LDC Melbourne giving notice to WANT of its intention to terminate the WANT JVA, within one Business Day of that date; and
 - (g) the occurrence of LDC Enterprises giving the Transfer Notice to ProClass, within one Business Day of that date.
- 9.2. LDC Group must notify the ACCC and each Undertaking Appointment in writing of any expected or anticipated steps or delays toward LDC Group achieving the Effective Date, as soon as LDC becomes aware or in any instance within one Business Day of that date.
- 9.3. From the Effective Date and until the obligations in this Undertaking are fulfilled, LDC Group must:
 - (a) notify the ACCC and each Undertaking Appointment of any circumstances that may impact the performance of its obligations under this Undertaking, within one Business Day of becoming aware of those circumstances; and
 - (b) continue to do everything in its power to perform the obligations under this Undertaking as soon as possible and until such time as the obligations are satisfied.
- 9.4. For the avoidance of doubt, failure to comply with any of the obligations under this Undertaking will constitute a breach of this Undertaking.
- 9.5. The ACCC may direct LDC Group in respect of its compliance with this Undertaking to, and LDC Group must:
 - (a) furnish information to the ACCC in the time and in the form requested by the ACCC;
 - (b) produce documents and materials to the ACCC within LDC Group's custody, power or control in the time and in the form requested by the ACCC; and/or
 - (c) attend the ACCC at a time and place appointed by the ACCC to answer any questions the ACCC (its Commissioners, its staff or its agents) may have.
- 9.6. Any direction made by the ACCC under clause 9.2 will be notified to LDC Group, in accordance with clause 16.2.
- 9.7. In respect of LDC Group's compliance with this Undertaking or an Undertaking Appointment's compliance with its Approved Terms of Appointment, the ACCC may request any Undertaking Appointment to:
 - (a) furnish information to the ACCC in the time and in the form requested by the ACCC;
 - (b) produce documents and materials to the ACCC within the Undertaking Appointment's custody, power or control in the time and in the form requested by the ACCC; and/or
 - (c) attend the ACCC at a time and place appointed by the ACCC to answer any questions the ACCC (its Commissioners, its staff or its agents) may have.

- 9.8. LDC Group will use its best endeavours to ensure that an Undertaking Appointment complies with any request from the ACCC in accordance with clause 9.7.
- 9.9. Information furnished, documents and material produced or information given in response to any request or direction from the ACCC under this clause 9 may be used by the ACCC for any purpose consistent with the exercise of its statutory duties.
- 9.10. The ACCC may in its discretion:
- (a) advise any Undertaking Appointment of any request made by it under this clause 9; and/or
 - (b) provide copies to any Undertaking Appointment of any information furnished, documents and material produced or information given to it under this clause 9.
- 9.11. Nothing in this clause 9 requires the provision of information or documents in respect of which LDC Group has a claim of legal professional or other privilege.

10. Disclosure of this Undertaking

- 10.1. Subject to clauses 10.2–10.5 LDC Group and the ACCC agree that Schedules 3 through to Schedule 7 will remain confidential in perpetuity.
- 10.2. LDC Group acknowledges that the ACCC may provide each Undertaking Appointment with a copy of this Undertaking which includes unredacted versions of Schedules 3 through to Schedule 7.
- 10.3. LDC Group acknowledges that the ACCC may, subject to clause 10.1:
- (a) make this Undertaking publicly available;
 - (b) publish this Undertaking on its Public Section 87B Undertakings Register and Public Mergers Register; and
 - (c) from time to time publicly refer to this Undertaking.
- 10.4. Nothing in clause 10.1 or the confidential parts of this Undertaking referred to in clause 10.1 prevents the ACCC from disclosing such information as is:
- (a) required by law;
 - (b) permitted by section 155AAA of the Act;
 - (c) necessary for the purpose of enforcement action under section 87B of the Act; or
 - (d) necessary for the purpose of making such market inquiries as the ACCC thinks fit to assess the impact on competition arising in connection with this Undertaking.
- 10.5. Nothing in clause 10.1 or the confidential parts of this Undertaking referred to in clause 10.1 prevents the ACCC from using the information contained in this Undertaking for any purpose consistent with its statutory functions and powers.

11. Obligation to procure

- 11.1. Where the performance of an obligation under this Undertaking requires a Related Body Corporate of LDC Group to take or refrain from taking some action, LDC Group will procure that Related Body Corporate to take or refrain from taking that action.

12. No Derogation

- 12.1. This Undertaking does not prevent the ACCC from taking enforcement action at any time whether during or after the period of this Undertaking in respect of any breach by LDC Group of any term of this Undertaking.
- 12.2. Nothing in this Undertaking is intended to restrict the right of the ACCC to take action under the Act for penalties or other remedies in the event that LDC Group does not fully implement and/or perform its obligations under this Undertaking or in any other event where the ACCC decides to take action under the Act for penalties or other remedies.

13. Change of Control

- 13.1. In the event that a Change of Control is reasonably expected to occur, LDC Group must:
- (a) notify the ACCC of this expectation as soon as practicable; and
 - (b) only implement a Change of Control to another person or entity if that person or entity has given a section 87B undertaking to the ACCC that requires it to comply with the same obligations as are imposed on LDC Group pursuant to this Undertaking, or on terms that are otherwise acceptable to the ACCC, unless the ACCC has notified LDC Group in writing that a section 87B undertaking under this clause is not required.

14. Costs

- 14.1. LDC Group must pay all of its own costs incurred in relation to this Undertaking.

15. Jurisdiction

- 15.1. LDCBV irrevocably submits to the jurisdiction of the Federal Court of Australia in relation to this Undertaking.
- 15.2. Unless and until notified in writing by LDCBV to the ACCC of the appointment of another person as agent within Australia, LDCBV appoints LDC Melbourne ACN 161 877 185, as its agent for the purposes of service of process in relation to this Undertaking.

16. Notices

Giving Notices

- 16.1. Any notice or communication to the ACCC pursuant to this Undertaking must be sent to:

Email address: mergers@accc.gov.au
Attention: Executive General Manager
Merger, Exemptions & Digital Division

With a copy sent to: mergersru@accc.gov.au
Attention: Director, Remedies Unit
Policy, Coordination & Remedies Branch
Merger, Exemptions & Digital Division

- 16.2. Any notice or communication to LDC Group pursuant to this Undertaking must be sent to:

Name: Hong Teong Goh

Address: 12 Marina Boulevard, Tower 3, Marina Bay Financial Centre,
#33-03, Singapore 018982

Email Address: hongteong.goh@ldc.com

Attention: Chief Legal Officer, South & South East Asia

With a copy sent to:

Name: Belinda Harvey

Address: Governor Phillip Tower, 1 Farrer Place, Level 50, White & Case
Sydney, NSW 2010

Email Address: belinda.harvey@whitecase.com

Attention: Partner, Antitrust & Competition

- 16.3. If sent by post, notices are taken to be received three Business Days after posting (or seven Business Days after posting if sent to or from a place outside Australia).
- 16.4. If sent by email, notices are taken to be received at the time shown in the email as the time the email was sent.

Change of contact details

- 16.5. LDC Group must notify the ACCC of a change to its contact details within three Business Days.
- 16.6. Any notice or communication will be sent to the most recently advised contact details and subject to clauses 16.3 and 16.4, will be taken to be received.

17. Defined terms and interpretation

Definitions in the Dictionary

- 17.1. A term or expression starting with a capital letter:
- (a) which is defined in the Dictionary in Part 1 of Schedule 1 (Dictionary), has the meaning given to it in the Dictionary; or

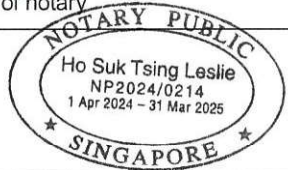
- (b) which is defined in the Corporations Act, but is not defined in the Dictionary, has the meaning given to it in the Corporations Act.

Interpretation

- 17.2. Part 2 of Schedule 1 sets out rules of interpretation for this Undertaking.

Executed as an Undertaking

Executed by Louis Dreyfus Company B.V. RSIN 813921594:

	
Signature of authorised representative	Signature of notary
HONG TENG GOH ATTORNEY	
Name and title of authorised representative (print)	Name of notary (print)
Date 29/07/2024	Date 29 JUL 2024
Place SINGAPORE	Place SINGAPORE

Executed by Louis Dreyfus Company Melbourne Holdings Pty Ltd ACN 161 877 185 pursuant to section 127(1) of the *Corporations Act 2001* by:

	
Signature of director	Signature of a director/company secretary
Anthony John Geitz	Axel Hubert Gauthier Henrot
Name of director (print)	Name of director/company secretary (print)
Date 29 July 2024	Date 29 July 2024

Executed by LDC Enterprises Australia Pty Limited ACN 003 415 950 pursuant to section 127(1) of the *Corporations Act 2001* by:

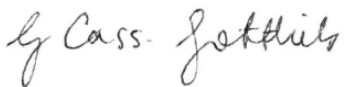
DocuSigned by:  F9ADFF1E3B9548B	DocuSigned by:  00
Signature of director	Signature of a director/company secretary
Anthony John Geitz	Axel Hubert Gauthier Henrot
Name of director (print)	Name of director/company secretary (print)
Date 29 July 2024	Date 29 July 2024

Accepted by the Australian Competition and Consumer Commission pursuant to section 87B of the *Competition and Consumer Act 2010* (Cth) on:

30 July 2024

Date

and signed on behalf of the Commission:



Chair

30 July 2024

Date

Schedule 1 – Dictionary and interpretation

1. Dictionary

ACCC means the Australian Competition and Consumer Commission.

Act means the *Competition and Consumer Act 2010* (Cth).

Agreements means any contract, arrangement or understanding, including any contract, arrangement or understanding to renew, amend, vary or extend any contract, arrangement or understanding.

Approved Audit Plan means the plan approved by the ACCC in accordance with the terms of this Undertaking, by which the Approved Independent Auditor will audit and report upon compliance with this Undertaking.

Approved Independent Auditor means the person approved by the ACCC and appointed under clause 8 of this Undertaking.

Approved Terms of Appointment means the terms of appointment for Approved Independent Auditor, as applicable, as approved by the ACCC in accordance with the terms of this Undertaking.

Associated Entity has the meaning given by section 50AAA of the Corporations Act.

Audit Report has the meaning given to it in clause 8.13 of this Undertaking.

Business Day means a day other than a Saturday or Sunday on which banks are open for business generally in the Australian Capital Territory.

Change of Control means:

- the assignment or other transfer of the legal or beneficial ownership of some or all of the share capital of LDC Group to any other person or entity that may impact compliance with this Undertaking in its entirety; or
- the sale or transfer of any assets necessary, or which may be necessary, to enable LDC Group to continue to comply with this Undertaking in its entirety.

Classing Market has the meaning given to it in clause 2.6 of this Undertaking.

Commencement Date means the date described in clause 3.1 of this Undertaking.

Corporations Act means the *Corporations Act 2001* (Cth).

Effective Date means the date on which LDC Melbourne or its Related Entities become the holder of additional securities which result in an increase in its percentage ownership in Namoi.

Establishment Audit has the meaning given to it in clause 8.14(a) of this Undertaking.

LDCBV means Louis Dreyfus Company B.V. RSIN 813921594, a private limited liability company established in the Netherlands.

LDC Enterprises means LDC Enterprises Australia Pty Ltd ACN 003 415 950.

LDC Group means LDCBV and its subsidiaries, LDC Melbourne and LDC Enterprises on their own behalf and on behalf of their respective subsidiaries.

LDC Melbourne means Louis Dreyfus Company Melbourne Holdings Pty Ltd ACN 161 877 185.

LDC Protocol means the information protocol established by LDC Group in relation to the WANT gin dated January 2024 as amended, set out in Confidential Schedule 7.

Louis Dreyfus Company Ginning Services Pty Ltd means Louis Dreyfus Company Ginning Services Pty Ltd ACN 670 950 786.

Namoi means Namoi Cotton Limited ACN 010 485 588.

ProClass means ProClass Pty Ltd ACN 112 092 109.

ProClass Business means

- the business of cotton classing; and
- any other activity the board of ProClass decides will be carried on by ProClass.

ProClass Confidential Information means the information, any documents, forms, specifications, processes, methodologies, statements, formulae, source codes, trade secrets, drawings and data (and copies, notes, reports and extracts made of or from that information, documents and data) about any of the following:

- the operations and dealings of ProClass, the ProClass Business or the operations and dealings of the ProClass Business and any third party, including ProClass shareholders;
- the organisation, finance, customers, markets, suppliers, plans, opportunities, intellectual property, technology and know-how of ProClass or any of its subsidiaries; and
- the operations and transactions of any other ProClass shareholder about the ProClass Business and that shareholder's shareholding.

ProClass Materials has the meaning given to it in clause 5.10 of this Undertaking.

ProClass Shareholders' Deed means the deed entered into by ProClass and its shareholders, as set out in Confidential Schedule 5.

ProClass Shareholding means all of the shares held by LDC Enterprises in ProClass.

ProClass Transfer Process means the transfer process set out in clause 14 of the ProClass Shareholders' Deed.

Proposed Acquisition is defined in clause 2.3 of this Undertaking.

Proposed Independent Auditor means a person named in a Proposed Independent Auditor Notice.

Proposed Independent Auditor Notice has the meaning given to it in clause 8.2 of this Undertaking.

Public Mergers Register means the ACCC's public register of merger clearances, available at www.accc.gov.au.

Public Section 87B Undertakings Register means the ACCC's public register of section 87B undertakings, available at www.accc.gov.au.

Related Bodies Corporate has the meaning given to it by section 50 of the Corporations Act.

Related Entities has the meaning given to it by section 9 of the Corporations Act.

Related Parties has the meaning given to it by section 228 of the Corporations Act.

Services means the LDC Services supplied in accordance with the WANT JVA and as set out in Schedule 3 of the WANT JVA.

Subsidiary has the meaning given by section 9 of the Corporations Act.

Successor means any subsequent service provider appointed by WANT to replace LDC Melbourne.

Termination Notice Period means the period from when LDC Melbourne gives notice of its intention to terminate the WANT JVA until the WANT JVA Termination Date.

Transfer Notice has the meaning given to it in clause 1 of Confidential Schedule 3 of this Undertaking.

Transferred Personnel has the meaning given to it in clause 7 of this Undertaking.

Transitional Services means the Services supplied by LDC during the Transitional Services Period.

Transitional Services Period means the 3 months from the WANT JVA Termination Date.

Undertaking Appointment means the Approved Independent Auditor.

Undertaking is a reference to all provisions of this document, including its schedules and as varied from time to time under section 87B of the Act.

WANT means WANT Cotton Pty Ltd ACN 645 100 321, Northern Cotton Pty Ltd ACN 645 635 294 and any of their Related Bodies Corporate.

WANT gin means the cotton gin facility owned by WANT at Tarwoo Station, 35 kilometres north of Katherine in the Northern Territory.

WANT JVA means the joint venture agreement dated 18 July 2023 between WANT and LDC Melbourne in relation to the WANT gin, as set out in Confidential Schedule 6.

WANT JVA Termination Date means the date of termination of the WANT JVA as specified in Confidential Schedule 4.

Western Australia and Northern Territory Ginning Market has the meaning given to it in clause 2.6 of this Undertaking.

2. Interpretation

- 2.1. In the interpretation of this Undertaking, the following provisions apply unless the context otherwise requires:
- (a) a reference to this Undertaking includes all of the provisions of this document including its schedules;
 - (b) headings are inserted for convenience only and do not affect the interpretation of this Undertaking;
 - (c) if the day on which any act, matter or thing is to be done under this Undertaking is not a Business Day, the act, matter or thing must be done on the next Business Day;
 - (d) a reference in this Undertaking to any law, legislation or legislative provision includes any statutory modification, amendment or re-enactment, and any subordinate legislation or regulations issued under that legislation or legislative provision;
 - (e) a reference in this Undertaking to any company includes its Related Bodies Corporate;
 - (f) a reference in this Undertaking to any agreement or document is to that agreement or document as amended, novated, supplemented or replaced;
 - (g) a reference to a clause, part, schedule or attachment is a reference to a clause, part, schedule or attachment of or to this Undertaking;
 - (h) an expression importing a natural person includes any company, trust, partnership, joint venture, association, body corporate or governmental agency;
 - (i) where a word or phrase is given a defined meaning, another part of speech or other grammatical form in respect of that word or phrase has a corresponding meaning;
 - (j) a word which denotes the singular also denotes the plural, a word which denotes the plural also denotes the singular.
 - (k) a reference to the words 'such as', 'including', 'particularly' and similar expressions is to be construed without limitation;
 - (l) a construction that would promote the purpose - or object - underlying the Undertaking (whether expressly stated or not) will be preferred to a construction that would not promote that purpose or object;
 - (m) material not forming part of this Undertaking may be considered to:
 - (i) confirm the meaning of a clause is the ordinary meaning conveyed by the text of the clause, taking into account its context in the Undertaking and the competition concerns intended to be addressed by the Undertaking and the clause in question; or
 - (ii) determine the meaning of the clause when the ordinary meaning conveyed by the text of the clause, taking into account its context in the Undertaking and the purpose or object underlying the

Undertaking, leads to a result that does not promote the purpose or object underlying the Undertaking;

- (n) in determining whether consideration should be given to any material in accordance with paragraph (m), or in considering any weight to be given to any such material, regard must be had, in addition to any other relevant matters, to the:
 - (i) effect that reliance on the ordinary meaning conveyed by the text of the clause would, have (taking into account its context in the Undertaking and whether that meaning promotes the purpose or object of the Undertaking); and
 - (ii) need to ensure that the result of the Undertaking is to completely address any ACCC competition concerns;
- (o) the ACCC may authorise the ACCC Mergers Review Committee, a member of the ACCC or a member of the ACCC staff, to exercise a decision making function under this Undertaking on its behalf and that authorisation may be subject to any conditions which the ACCC may impose;
- (p) in performing its obligations under this Undertaking, LDC Group will do everything reasonably within its power to ensure that its performance of those obligations is done in a manner which is consistent with promoting the purpose and object of this Undertaking;
- (q) a reference to:
 - (i) a thing (including, but not limited to, a chose in action or other right) includes a part of that thing;
 - (ii) a party includes its successors and permitted assigns; and
 - (iii) a monetary amount is in Australian dollars.

Schedule 2 – Proposed Undertaking Appointment Form

This form sets out the information required by the ACCC in relation to proposed appointment of the following positions under the Undertaking:

Proposed Independent Auditor; (the **Undertaking Appointment**).

This form is to be used for each of the above appointments.

Please note that it is an offence under s137.1 of the Criminal Code Act 1995 (Cth) to give information to a Commonwealth entity knowing that the information is false or misleading or omits any matter or thing without which the information is misleading.

1. Method of Delivery to the ACCC

The completed form with requested documents attached may be provided to the ACCC using the following method:

Email

Subject line: Proposed Independent Auditor Notice – LDC undertaking
Address: mergers@accc.gov.au
Attention: Executive General Manager – Mergers, Exemptions & Digital Division

With an email copy sent to:

Address: mergersru@accc.gov.au
Attention: Director, Remedies Unit - Policy, Coordination & Remedies Branch,
Mergers, Exemptions & Digital Division

2. Information Required

The ACCC requires the following information in order to assess a proposed Independent Auditor (i.e. the relevant Undertaking Appointment):

2.1. Proposed Undertaking Appointment details:

- (a) the name of the Proposed Undertaking Appointment; and
- (b) the name of the proposed Undertaking Appointment's employer and contact details including:
 - (i) Address;
 - (ii) Contact name;
 - (iii) Telephone number;
 - (iv) Other contact details.

2.2. A submission containing the following information:

- (a) details of the Undertaking Appointment's qualifications and experience relevant to his or her proposed role pursuant to the Undertaking;
- (b) the names of the owner(s) and the director(s) of the Undertaking Appointment's employer;
- (c) details of any of the following types of relationships between LDC Group and the Undertaking Appointment or the Undertaking Appointment's employer or confirmation that no such relationship exists whether within Australia or outside of Australia:
 - (i) LDC Group and the Undertaking Appointment's employer are Associated Entities;
 - (ii) LDC Group is an Entity Connected with the Undertaking Appointment's employer;
 - (iii) The Undertaking Appointment's employer is an Entity Connected with LDC Group;
 - (iv) LDC Group and the Undertaking Appointment's employer are Related Entities;
 - (v) LDC Group and the Undertaking Appointment's employer are Related Parties;
 - (vi) any Related Party, Related Entity or Entity Connected with LDC Group is a Related Party, Related Entity or Entity Connected with the Undertaking Appointment;
 - (vii) LDC Group and the Undertaking Appointment or the Undertaking Appointment's employer have a contractual relationship or had one within the past three years, other than those attached to this form;
 - (viii) the Undertaking Appointment's employer is a supplier of LDC Group or has been in the past three years;
 - (ix) LDC Group is a supplier of the Undertaking Appointment's employer or has been in the past three years; and
 - (x) any other relationship between LDC Group and the Undertaking Appointment or the Undertaking Appointment's employer that allows one to affect the business decisions of the other;
- (d) details of any existing or past contractual relationships between the Undertaking Appointment or the Undertaking Appointment's employer and the ACCC within the past three years.

2.3. A document outlining the terms of appointment for the proposed Undertaking Appointment. This should identify the basis on which fees will be paid, including disclosure of any proposed performance-based fees.

3. Specific Information required for Proposed Undertaking Appointments

The ACCC requires the below information in relation to the relevant Undertaking Appointment.

Proposed Independent Auditor

- 3.1. A finalised draft audit plan for the ProClass Shareholding and the WANT JVA, in an editable format, drafted by the Proposed Independent Auditor and outlining (to the extent possible) the Proposed Independent Auditor's plans regarding the Establishment Audit and the Audit Report.

Confidential Schedule 3

Confidential Schedule 4

Confidential Schedule 5

Confidential Schedule 6

Confidential Schedule 7
